

## CCRB INVESTIGATIVE RECOMMENDATION

|                                                  |                                     |                           |                                                        |                                               |                                 |
|--------------------------------------------------|-------------------------------------|---------------------------|--------------------------------------------------------|-----------------------------------------------|---------------------------------|
| Investigator:<br>Rosemary Espinal                | Team:<br>Team # 2                   | CCRB Case #:<br>200906545 | <input type="checkbox"/> Force                         | <input checked="" type="checkbox"/> Discourt. | <input type="checkbox"/> U.S.   |
|                                                  |                                     |                           | <input checked="" type="checkbox"/> Abuse              | <input type="checkbox"/> O.L.                 | <input type="checkbox"/> Injury |
| Incident Date(s)<br>Thursday, 04/23/2009 5:00 PM | Location of Incident:<br>§ 87(2)(b) | Precinct:<br>73           | 18 Mo. SOL<br>10/23/2010                               | EO SOL<br>10/23/2010                          |                                 |
| Date/Time CV Reported<br>Thu, 04/23/2009 5:30 PM | CV Reported At:<br>IAB              | How CV Reported:<br>Phone | Date/Time Received at CCRB<br>Wed, 04/29/2009 11:48 AM |                                               |                                 |

| Complainant/Victim | Type       | Home Address |
|--------------------|------------|--------------|
| § 87(2)(b)         | § 87(2)(b) | § 87(2)(b)   |

| Witness(es) | Home Address |
|-------------|--------------|
| § 87(2)(b)  | § 87(2)(b)   |
| § 87(2)(b)  | § 87(2)(b)   |
| § 87(2)(b)  | § 87(2)(b)   |
| § 87(2)(b)  | § 87(2)(b)   |

| Subject Officer(s)    | Shield | TaxID  | Command |
|-----------------------|--------|--------|---------|
| 1. POF Tiffany Bruce  | 16044  | 944211 | PSA 2   |
| 2. SGT Jason Luciano  | 03444  | 932929 | PSA 2   |
| 3. POM Daniel Kearney | 11964  | 947125 | PSA 2   |

| Witness Officer(s)      | Shield No | Tax No | Cmd Name |
|-------------------------|-----------|--------|----------|
| 1. POM Thomas Perrotti  | 13463     | 947341 | PSA 2    |
| 2. POM James Andreas    | 20593     | 945135 | PSA 2    |
| 3. POM Daniel Dallemand | 07610     | 944480 | PSA 2    |
| 4. POM Richard Pierre   | 10653     | 944898 | PSA 2    |

| Officer(s)           | Allegation                                                                  | Investigator Recommendation |
|----------------------|-----------------------------------------------------------------------------|-----------------------------|
| A.POM Daniel Kearney | Discourtesy: PO Daniel Kearney spoke obscenely to § 87(2)(b)                | § 87(2)(b)                  |
| B.POF Tiffany Bruce  | Abuse: PO Tiffany Bruce threatened § 87(2)(b) with the use of force.        | § 87(2)(b)                  |
| C.SGT Jason Luciano  | Discourtesy: Sgt. Jason Luciano spoke obscenely and/or rudely to § 87(2)(b) | § 87(2)(b)                  |

## Synopsis

On April 23, 2009, § 87(2)(b) called the Internal Affairs Bureau to file a complaint (IAB log # 09-19390). Her complaint was then forwarded to the CCRB. On April 23, 2009 at approximately 5:00 PM, § 87(2)(b) got into an altercation in front of § 87(2)(b) in Brooklyn with a neighbor named § 87(2)(b) last name unknown. Two police officers, PO Daniel Kearney and PO Thomas Perrotti, arrived at the location. PO Kearney requested § 87(2)(b)'s identification but § 87(2)(b) refused to provide it. She stepped into the building's elevator in an attempt to leave. PO Kearney ordered § 87(2)(b) to "step-off the mother-fucking elevator" (**Allegation A**). PO Kearney and PO Perrotti pulled § 87(2)(b) out of the elevator by her coat collar, placed her arms behind her back and handcuffed her. PO Tiffany Bruce arrived at the location and told § 87(2)(b) that they could go "toe to toe" if she was not wearing her uniform (**Allegation B**). Sgt. Jason Luciano and his partner, PO James Andreas, also arrived. Sgt. Luciano told § 87(2)(b) to "shut the fuck up" because she was getting a "mother fucking ticket" (**Allegation C**). § 87(2)(b) was issued three summonses § 87(2)(a) 160.50.

§ 87(2)(g), § 87(2)(b)

## Summary of Complaint

§ 87(2)(b)

§ 87(2)(b) is a § 87(2)(b) black female standing 5'4" and weighing 200 lbs. She is currently § 87(2)(b) and resides at § 87(2)(b) § 87(2)(b) in Brooklyn. On April 24, 2009, § 87(2)(b) provided an initial statement to IAB (encl. 7a-c). She also provided a telephone statement to the CCRB on May 7, 2009. On June 8, 2009, § 87(2)(b) provided an official statement to the CCRB (encl.9a-d). § 87(2)(g)

On April 23, 2009, at approximately 5:00 PM, § 87(2)(b) was waiting for the elevator in the lobby of her building located at § 87(2)(b) in Brooklyn. She was wearing jeans, a waist-length brown coat, and sneakers. As she waited, a neighbor named § 87(2)(b) said an unknown remark to § 87(2)(b) and they got into a loud argument by the entrance of the building. § 87(2)(b) accused § 87(2)(b) of assault. Two uniformed officers, approached on foot. § 87(2)(b) identified the two officers as white males standing 5'7" and 5'4" tall respectively. § 87(2)(b) stated that one of those officers was named Officer Dallemand but stated she was not sure. The investigation found that PO Daniel Dallemand is a black male. It was thus determined through officer statements that the two police officers that initially arrived were PO Daniel Kearney and PO Thomas Perrotti. PO Kearney and PO Perrotti asked § 87(2)(b) if she lived in the building and she said yes. One of the officers, determined through the investigation to be PO Perrotti, told § 87(2)(b) to step outside of the building. The officers told § 87(2)(b) to go up to her apartment but § 87(2)(b) refused. She told the officers that they could not tell her to go upstairs because she is a grown woman and that she goes home when she is ready. Nonetheless, § 87(2)(b) decided to go home.

As § 87(2)(b) stepped into the elevator, PO Kearney, asked her to step off the elevator. § 87(2)(b) asked why and did not step out of the elevator. PO Kearney then asked § 87(2)(b) if she had identification. § 87(2)(b) asked what for. PO Kearney then ordered § 87(2)(b) to "step-off the God damned elevator." § 87(2)(b) told PO Kearney that she did not have to step-off the elevator. PO Kearney ordered § 87(2)(b) to "step-off the mother-fucking elevator." § 87(2)(b) refused. PO Perrotti and PO Kearney grabbed § 87(2)(b)'s coat collar and pulled her out of the elevator. § 87(2)(b) pushed the officers but they did not fall. PO Perrotti then stepped in to assist PO Kearney. PO Perrotti took out his pepper-spray bottle and shook it but did not pepper-spray § 87(2)(b).

PO Kearney and PO Perrotti attempted to handcuff § 87(2)(b). They grabbed her right arm and attempted to place it on her back. § 87(2)(b) pulled away and flailed her arms. She moved her body from side to side and pulled her arms and body away from PO Kearney. PO Perrotti took his pepper spray bottle out and shook it. § 87(2)(b) turned her face from side to side repeatedly to avoid the pepper spray, but PO Perrotti did not pepper-spray § 87(2)(b). PO Kearney then asked PO Perrotti to give him a hand in handcuffing § 87(2)(b). § 87(2)(b)'s neighbors § 87(2)(b), § 87(2)(b) and § 87(2)(b) were present and witnessed the incident. § 87(2)(b) told the officers not to pepper-spray § 87(2)(b). There were approximately ten other bystanders who witnessed the incident.

PO Tiffany Bruce, who was described as an African-American female, arrived at the location. The investigation revealed that PO Daniel Dallemand also arrived with PO Bruce at this time. § 87(2)(b) was eventually handcuffed by PO Kearney, PO Perrotti, PO Bruce and PO Dallemand. PO Bruce asked § 87(2)(b) what happened. § 87(2)(b) was hyperventilating. PO Bruce asked § 87(2)(b) to calm down and not yell. § 87(2)(b) told PO Bruce that she talks that loud when she is excited. PO Bruce told § 87(2)(b) that if she was not wearing her police uniform, they could go "toe to toe." § 87(2)(b) got upset at PO Bruce's comment and told PO Bruce to take her police uniform off and that she would "fuck her up." PO Bruce warned PO Kearney and PO Perrotti that § 87(2)(b) had something in her pockets and should be searched. § 87(2)(b) had her wallet and keys inside her coat pocket, which are bulky. PO Bruce attempted to search § 87(2)(b) but § 87(2)(b) told her, "You can't touch me." § 87(2)(b) told the officers to call other officers because the three of them could not touch her. § 87(2)(b) continued moving her body, refusing to be searched.

Moments later, three other officers arrived at the location in a marked patrol car. Through the investigation it was determined that the officers who arrived in a vehicle were Sgt. Jason Luciano with his operator, PO James Andreas and PO Richard Pierre.

§ 87(2)(b) was taken out of the lobby by PO Kearney, PO Bruce, PO Perrotti and PO Dallemand. She was taken to the police vehicle which was parked in front of the location. § 87(2)(b) asked PO2, whom she described as a white or Hispanic bald male standing 5'9" tall, to remove the handcuffs from her. PO2 was determined to be Sgt. Luciano given that he matched § 87(2)(b)'s description. Sgt. Luciano responded "Just shut the fuck up because you are getting a mother fucking ticket." § 87(2)(b) told Sgt. Luciano "fuck you too." PO Andreas, did not exit the vehicle and did not have any interaction with § 87(2)(b).

PO Bruce searched § 87(2)(b)'s left coat and pant pockets and another officer who was on foot and described as a short Hispanic male, searched § 87(2)(b)'s right side coat and pant pockets. PO Bruce took § 87(2)(b)'s identification from her wallet. § 87(2)(b) did not have any weapons. § 87(2)(b) remained handcuffed until the officers checked for any outstanding warrants. They then issued her three summonses for disorderly conduct and harassment. Her handcuffs were removed. § 87(2)(b) refused to take the summonses and told the officers not to give them to her daughter because she was a minor. § 87(2)(b) asked her daughter to write down the officers names. § 87(2)(b) could not provide any additional descriptions of the officers.

## **Results of Investigation**

### **Civilian Statements**

§ 87(2)(b) (*Witness*) (encl.10A)

On July 17, 2009, § 87(2)(b) provided a phone statement to the CCRB. § 87(2)(b), § 87(2)(g). Nonetheless, she agreed to provide a notarized written statement which to date has not been received at the CCRB. On April 23, 2009, at approximately 5:00 PM, § 87(2)(b) was standing outside of § 87(2)(b) with another unidentified female when she observed § 87(2)(b) having an altercation with a male named § 87(2)(b). § 87(2)(b) said that § 87(2)(b) "messes around with everybody when he is drinking." § 87(2)(b) asked § 87(2)(b) to just leave the matter alone. § 87(2)(b) made a comment about § 87(2)(b)'s mother. § 87(2)(b)

and § 87(2)(b) got into a fist fight. Officers arrived and § 87(2)(b) went inside of § 87(2)(b) and onto the elevator. PO Daniel Kearney, who was described as a white male, told § 87(2)(b) that he wanted to see some identification. § 87(2)(b) refused to exit the elevator and told the officer that she did not have to show him any identification and that she lived there. § 87(2)(b) also told PO Kearney that she did not do anything and that he did not have to talk to her the way he was talking to her. PO Thomas Perrotti, who was described as a white male of a shorter height than PO Kearney, placed his foot by the elevator door to prevent it from closing. § 87(2)(b) told § 87(2)(b) to “shut up” and just do what the officers were asking her to do. Three other officers arrived at the location, including PO Tiffany Bruce, who was described as a young black female officer who attempted to pepper-spray § 87(2)(b). The officers struggled to handcuff § 87(2)(b) who was resisting. The officers asked § 87(2)(b) to calm down. Several officers attempted to search § 87(2)(b)'s pockets but she did not allow them. § 87(2)(b) began moving her body and refused to be searched. § 87(2)(b) asked PO Bruce not to pepper-spray § 87(2)(b). § 87(2)(b)'s daughter arrived at the scene. § 87(2)(b) then decided not to continue watching the incident and exited the building.

§ 87(2)(b) (*Witness*) (encl.11A)

On July 22, 2009, § 87(2)(b) provided a phone statement to the CCRB. § 87(2)(b) was not formally interviewed given that she refused to provide an official statement to the CCRB stating that she did not witness the entire incident and refused to be involved in the investigation. On April 23, 2009, § 87(2)(b) was walking inside her building located at § 87(2)(b) when she observed police activity in the lobby. She observed several police officers attempting to handcuff § 87(2)(b). The officers were telling § 87(2)(b) to stay still. § 87(2)(b) did not comply and was “going wild.” The officers attempted to calm her down. § 87(2)(b) was yelling at the officers that she did not do anything. § 87(2)(b) does not know what happened prior to her arrival at the incident location. § 87(2)(b) did not witness the entire incident therefore she could not provide a statement. She refused to be involved in the investigation.

#### **Attempts to Contact Civilian/Witness**

On July 17, 2009, the undersigned investigator placed calls to witnesses § 87(2)(b) and § 87(2)(b) and left messages requesting a call back. The same day, the undersigned mailed first letters to § 87(2)(b), § 87(2)(b), § 87(2)(b) and § 87(2)(b) and the letters were not returned to the CCRB. The same day, § 87(2)(b) called the CCRB and provided a brief statement about the incident but stated she was not willing to provide an in-person statement citing personal reasons. Nonetheless, she agreed to provide a notarized statement which to date had not been received at the CCRB. On July 22, 2009, the undersigned placed a call to § 87(2)(b). § 87(2)(b) provided a brief account of what she observed but refused to provide an official statement to the CCRB stating that she did not witness the entire incident. On July 28, 2009, the undersigned mailed final letters to § 87(2)(b) and § 87(2)(b) and the letters were not returned to the CCRB. On August 19, 2009, the undersigned placed a call to § 87(2)(b) and left a message requesting a call back. To date, neither, § 87(2)(b), § 87(2)(b) nor § 87(2)(b) has made any attempts to contact the CCRB in regard to this investigation.

#### **Identification of Officers Interviewed**

Officers Tiffany Bruce, Daniel Dallemand, Thomas Perrotti, Daniel Kearney and Sgt. Jason Luciano were identified through the IAB log.

#### **Police Officer Statements**

##### ***PO Thomas Perrotti***

*PO Thomas Perrotti was interviewed at the CCRB on July 28, 2009 (encl. 22a-b). PO Perrotti is a § 87(2)(b) old white male standing 6'3" and weighing 245 lbs. He is currently assigned to the PSA 2 and has a one-year tenure at the NYPD. On April 23, 2009, PO Perrotti worked from 9:30 AM to 6:05 PM. He was assigned to foot patrol in post 249, covering the § 87(2)(b) with his partner, PO Daniel Kearney. PO Perrotti was dressed in uniform. PO Perrotti had the following entries in his memo book regarding this incident: at 4:40 PM, he started conducting an exterior patrol of § 87(2)(b). At*

4:50 PM, he picked-up a dispute inside the lobby of § 87(2)(b) one black male and one black female, § 87(2)(b) of § 87(2)(b) PO Perrotti observed § 87(2)(b) strike the unknown black male in the face and chest area. The black male did not receive any injuries. § 87(2)(b) would not comply with any questioning done by PO Perrotti or his partner. When § 87(2)(b) was asked to step out of the elevator, she refused to exit and started to use extremely threatening gestures, movements and verbal threats. The officers felt unsafe and proceeded to frisk her. § 87(2)(b) made furtive movements by placing her arms into her waistband. The officers then decided to handcuff § 87(2)(b) for safety. § 87(2)(b) resisted being handcuffed and began to fight back by swinging her arms at the officers and kicking her legs.

On April 23, 2009, PO Perrotti and PO Kearney were patrolling on foot in the vicinity of § 87(2)(b) in Brooklyn when PO Perrotti observed § 87(2)(b) and § 87(2)(b) arguing loudly inside of § 87(2)(b). § 87(2)(b) swung at § 87(2)(b) then hit him on the head and chest. § 87(2)(b) did not hit § 87(2)(b) back. Upon approach, PO Perrotti realized that both individuals were highly intoxicated because of their smell of liquor. The officers separated them and started questioning them to find out the reason for the altercation. The officers also wanted to know whether § 87(2)(b) and § 87(2)(b) lived at the location. The officers were concerned in knowing if § 87(2)(b) and § 87(2)(b) were trespassing. PO Perrotti spoke to § 87(2)(b) just outside of the building. § 87(2)(b) was cooperative and compliant. PO Perrotti patted him down to make sure he did not have any weapons given that he was involved in a fight, but he had none.

PO Kearney was inside the lobby trying to speak to § 87(2)(b) but § 87(2)(b) was yelling and screaming. § 87(2)(b) was wearing a bulky coat and kept going into her bag for an unknown reason. She was also carrying a big set of keys. PO Perrotti went inside the lobby to assist PO Kearney after realizing that § 87(2)(b) was giving him a hard time. The officers tried to obtain § 87(2)(b)'s information but she refused to provide it. PO Perrotti's initial intentions were to arrest § 87(2)(b) for assault in the third degree for assaulting § 87(2)(b). However, § 87(2)(b) had no visible injuries and said he was fine. PO Perrotti then decided that he was going to issue § 87(2)(b) a summons for harassment. § 87(2)(b) proceeded to press the elevator button to leave the scene. When the elevator arrived she ran swiftly inside stating that she was going home. The officers went inside the elevator and grabbed § 87(2)(b)'s arms in order to remove her from the elevator. § 87(2)(b) resisted by pulling back.

A crowd of approximately twenty people began to form in the lobby, making the situation more difficult given that they started yelling and cursing as well. PO Dallemand and PO Bruce arrived when PO Perrotti and his partner were struggling to handcuff § 87(2)(b). Either PO Dallemand or PO Bruce asked § 87(2)(b) to please come out of the elevator and § 87(2)(b) exited voluntarily. Once out of the elevator, § 87(2)(b) continued acting belligerent and non-compliant. She began flailing her arms and said she was not going anywhere. PO Perrotti thought that § 87(2)(b) was emotionally disturbed. All of the officers assisted in handcuffing § 87(2)(b). § 87(2)(b) was frisked but PO Perrotti could not recall who frisked her. § 87(2)(b) was not searched. The officers obtained § 87(2)(b)'s identification but PO Perrotti could not recall how her identification was obtained.

A few other officers arrived at the scene but PO Perrotti could not recall who arrived. One of those officers was Sgt. Jason Luciano. Sgt. Luciano attempted to calm § 87(2)(b) down. PO Perrotti issued § 87(2)(b) three summonses § 87(2)(a) 160.50

PO Perrotti stated that minimal force was used with § 87(2)(b) to gain compliance, which consisted of grabbing her arms to handcuff her. PO Perrotti did not use any discourtesy and did not hear any of the officers use profane language. PO Perrotti did not hear PO Bruce threaten to use force against § 87(2)(b). PO Perrotti did not search § 87(2)(b) and did not see any other officer search § 87(2)(b).

#### **PO Daniel Kearney**

PO Daniel Kearney was interviewed at the CCRB on August 19, 2009 (encl. 24a-b). PO Kearney is a § 87(2)(b) year-old white male standing 6'4" and weighing 210 lbs. He is currently assigned to the PSA 2 and has a one-year tenure at the NYPD. On April 23, 2009, PO Kearney worked from 9:30 AM to 5:05 PM. He was assigned to foot patrol in post 249 at the § 87(2)(b). His partner was PO Thomas

Perrotti. PO Kearney was dressed in uniform and was working on foot. The following entries were written in PO Kearney's memo book: at 16:50, PO Kearney picked-up a dispute inside the lobby of § 87(2)(b) one black male and a black female, § 87(2)(b) of § 87(2)(b) PO Kearney observed § 87(2)(b) strike and swing at one black male, name unknown. The unknown black male had no injuries. When § 87(2)(b) was questioned, she would not comply with PO Kearney's request, would not provide identification to prove that she lived at location and did not have identification on her. When asked to step out of the elevator, § 87(2)(b) refused, started using threatening gestures and movements with verbal threats. The officers felt unsafe and decided to frisk § 87(2)(b). § 87(2)(b) made furtive movements, hands down towards waist. The officers went to cuff § 87(2)(b) but she resisted by swinging her arms and started kicking. At 5:00 PM, three summonses were issued to § 87(2)(b) by PO Perrotti. § 87(2)(g).

PO Kearney observed § 87(2)(b) swinging at § 87(2)(b) she then struck him in the face. The officers approached. PO Kearney talked to § 87(2)(b) and PO Perrotti talked to § 87(2)(b). § 87(2)(b) was highly agitated. She did not want to talk to PO Kearney. § 87(2)(b) told PO Kearney that she did not have to talk to him. PO Kearney asked § 87(2)(b) for identification but she said she did not have any. § 87(2)(b) then said that she did not have to provide any identification to the officer. PO Kearney told § 87(2)(b) that he needed to see her identification to find out who she was and what was going on. § 87(2)(b) said she was leaving and began to press the elevator button. She said she lived at the location and was going to her apartment. PO Kearney did not want to let § 87(2)(b) go yet because she was fighting with another person and he needed to find out what was going on. PO Kearney told § 87(2)(b) that she could not leave yet. Nonetheless, § 87(2)(b) got into the elevator ignoring PO Kearney's order.

PO Kearney and PO Perrotti grabbed § 87(2)(b) by her arms and attempted to pull her out of the elevator but § 87(2)(b) pulled back and refused to exit the elevator. The officers did not grab § 87(2)(b)'s coat collar to pull her out of the elevator. The officers warned § 87(2)(b) that they were not stepping off the elevator until she exited thus § 87(2)(b) stepped off the elevator voluntarily. § 87(2)(b) told the officers not to touch her. She continued acting very agitated and began moving around. § 87(2)(b) started cursing at the officers, telling them "fuck you", "get the fuck off" and "fuck police." PO Perrotti attempted to frisk § 87(2)(b) for safety because they did not know if § 87(2)(b) had any weapons in her pockets given that she was fighting with an individual. When the officers attempted to frisk her, § 87(2)(b) got out of control. She began stomping her feet and was moving around. PO Kearney grabbed § 87(2)(b)'s arms to place them behind her back to handcuff her, but PO Kearney struggled with her as she refused to be handcuffed.

Other officers arrived at the scene, including PO Bruce and PO Dallemand. PO Bruce assisted PO Kearney and PO Perrotti in handcuffing § 87(2)(b). PO Kearney did not recall who eventually frisked § 87(2)(b). He did not see any officer search § 87(2)(b)'s pockets. PO Kearney did not hear PO Bruce make threats to § 87(2)(b) that she would fight her if she did not have her uniform on. PO Kearney did not use any discourtesy against § 87(2)(b) and did not hear any officer curse at § 87(2)(b). The officers did not use any force against § 87(2)(b) other than the force used to place her in handcuffs.

Sgt. Luciano also arrived at the scene with his operator, PO James Andreas. When Sgt. Luciano arrived at the scene, § 87(2)(b) continued being very belligerent. Sgt. Luciano took over the situation, he was "going out of his way" to calm § 87(2)(b) down. Sgt. Luciano was very courteous. § 87(2)(b) "stepped all over Sgt. Luciano and cursed him out."

A large crowd started forming and they were moving around, being loud. Some people in the crowd were saying, "God damned police." Other officers arrived at the scene but PO Kearney could not recall who those officers were. The officers brought § 87(2)(b) outside to the patrol car. § 87(2)(b) was then issued three summonses for disorderly conduct-fighting and harassment.

### **PO Tiffany Bruce**

PO Tiffany Bruce was interviewed at the CCRB on July 9, 2009 (encl. 14a-b). PO Bruce is a § 87(2)(b) old black female standing 5'3" tall and weighing 153 lbs. She is currently assigned to the PSA 2 and has a

two-year tenure at the NYPD. On April 23, 2009, PO Bruce worked from 9:30 AM to 6:05 PM. Her assignment was Impact Post # 149. PO Bruce was assigned to foot patrol at the § 87(2)(b), covering three housing buildings. PO Bruce was working with PO Daniel Dallemand. She was working on foot and was dressed in uniform. PO Bruce had the following memo book entries regarding this incident: at 5:00 PM, one disorderly female, § 87(2)(b) was stopped in the lobby of § 87(2)(b) by post 249. § 87(2)(b) was observed fighting with an unknown male. At 17:10, three summonses were issued by PO Perrotti.

On April 23, 2009, at approximately 5:00 PM, PO Bruce and her partner PO Dallemand encountered PO Perrotti and PO Kearney in the lobby of § 87(2)(b) in Brooklyn. PO Perrotti and PO Kearney were struggling to handcuff § 87(2)(b). PO Kearney and PO Perrotti told PO Bruce that § 87(2)(b) was fighting with § 87(2)(b) that they separated them and when they asked § 87(2)(b) to go home she began cursing. When PO Perrotti and PO Kearney attempted to issue § 87(2)(b) a summons, § 87(2)(b) became irate and began swinging her arms at the officers.

Upon her arrival at the scene, PO Bruce observed § 87(2)(b) resisting to be handcuffed. She was flailing her arms and kicking her legs. PO Perrotti and PO Kearney had already placed one handcuff on § 87(2)(b) but could not handcuff the other arm. PO Dallemand assisted in handcuffing § 87(2)(b). Once § 87(2)(b) was handcuffed, the officers requested a sergeant to the scene. The officers requested § 87(2)(b)'s identification but § 87(2)(b) stated that she did not have any. Sgt. Jason Luciano arrived moments later with his driver, PO James Andreas. Sgt. Luciano attempted to calm § 87(2)(b) down. There were approximately ten bystanders telling the officers that § 87(2)(b) did not do anything.

PO Perrotti asked PO Bruce to frisk § 87(2)(b) for safety. § 87(2)(b) told the officers to “get the fuck off of her.” She told PO Bruce that she was not going to touch her. PO Bruce frisked § 87(2)(b). § 87(2)(b) began kicking her legs as she was being frisked. PO Bruce attempted to request information from § 87(2)(b) but she was yelling. § 87(2)(b) called PO Bruce a “fucking black bitch” and then told her that she is black just like her and that outside of her uniform she was still a black female. PO Bruce did not tell § 87(2)(b) that they could fight “toe to toe” if she did not have her uniform on. PO Bruce did not have any physical contact with § 87(2)(b) besides frisking her. PO Bruce did not search § 87(2)(b). PO Bruce did not hear any officer at the scene use any discourtesy or obscene language toward § 87(2)(b). PO Bruce did not witness any force being used against § 87(2)(b) besides what was necessary to place her in handcuffs. PO Perrotti issued § 87(2)(b) three summonses. PO Bruce did not recall who removed the handcuffs from § 87(2)(b).

### **PO Daniel Dallemand**

PO Daniel Dallemand was interviewed at the CCRB on July 14, 2009 (encl. 16a-b). PO Dallemand is § 87(2)(b) year-old black male standing 6'1" tall and weighing 185 lbs. He is currently assigned to PSA 2 and has a 2-year tenure at the NYPD. On April 23, 2009, PO Dallemand worked from 9:30 AM to 6:05 PM. He was assigned to foot patrol in post # 149 at the § 87(2)(b). He was dressed in uniform and was working with PO Tiffany Bruce. PO Dallemand had the following entries in his memo book regarding this incident: at 5:00 PM, there was a disorderly female in the lobby of § 87(2)(b). § 87(2)(b) PO Dallemand and his partner were backing post # 249. At 5:10 PM, § 87(2)(b) was issued three summonses by PO Perrotti.

On April 23, 2009 at approximately 5:00 PM, PO Dallemand arrived in front of § 87(2)(b) and observed PO Thomas Perrotti and PO Daniel Kearney trying to handcuff § 87(2)(b). PO Dallemand was informed by the officers that § 87(2)(b) had gotten into a physical altercation with a male, identified by § 87(2)(b) as § 87(2)(b). § 87(2)(b) refused to be handcuffed and appeared to be intoxicated. PO Perrotti and PO Kearney were trying to get § 87(2)(b)'s arms behind her back to handcuff her.

§ 87(2)(b) did not want to be touched; she was flailing her arms and pushing the officers. She was also cursing loudly, “You’re not cuffing me, it’s not fucking happening.” § 87(2)(b) then crossed her arms across her chest to avoid being handcuffed. A big crowd of approximately twenty people gathered in front of the location. Given that PO Perrotti and PO Kearney could not effectively handcuff § 87(2)(b) PO

Dallemand assisted them. § 87(2)(b) was taken outside of the lobby because the crowd was arguing. The officers grabbed § 87(2)(b)'s arms to bring them to her back. They pushed her out of the building given that she would not comply with orders to step outside of the lobby. Two sets of handcuffs were necessary to handcuff § 87(2)(b) because her wrists were too big. § 87(2)(b) was cursing at the officers throughout the entire incident. No additional force was used on § 87(2)(b) besides the force necessary to handcuff her. PO Bruce frisked § 87(2)(b) for safety to make sure she had no weapons on her. After the frisk occurred, § 87(2)(b) became more upset and began yelling obscenities at the officers. § 87(2)(b) was frisked for safety but she was not searched. PO Dallemand did not frisk or search § 87(2)(b).

The officers called a supervisor to the scene. Sgt. Jason Luciano arrived and spoke to the officers and § 87(2)(b). Sgt. Luciano decided that he would not arrest § 87(2)(b). He decided to release her with three summonses § 87(2)(a) 160.50.

PO Dallemand was not present when § 87(2)(b) was taken out of the elevator. PO Dallemand did not hear PO Bruce tell § 87(2)(b) that if she was not wearing her uniform they could go "toe to toe." PO Dallemand did not use any obscene language against § 87(2)(b) and did not hear any other officer do so.

### **Sgt. Jason Luciano**

*Sgt. Jason Luciano was interviewed at the CCRB on July 15, 2009 (encl. 19a-b). Sgt. Luciano is a § 87(2)(b) old Hispanic male standing 6' feet tall and weighing 187 lbs. He is currently assigned to the PSA 2 and has a six-year tenure at the NYPD. On April 23, 2009, Sgt. Luciano worked from 9:13 AM to 6:10 PM. His assignment was impact sergeant. His operator was PO James Andreas. Sgt. Luciano was dressed in uniform and was assigned to a marked police vehicle. Sgt. Luciano did not have any entries in his memo book regarding this incident.*

When Sgt. Luciano arrived he asked § 87(2)(b) for her identification but § 87(2)(b) refused to provide any. She yelled and cursed at Sgt. Luciano. A large crowd of approximately ten to fifteen people started gathering. The crowd began yelling obscenities at the officers and began to get "in the officers' face." Several people in the crowd began to take down every officer's shield number. § 87(2)(b) was yelling at the officers, "you fucking cops, go fuck yourselves, don't you have anything better to do." Sgt. Luciano started feeling uncomfortable for his safety and that of his officers. Sgt. Luciano gave § 87(2)(b) several commands to lower her voice and to calm down but § 87(2)(b) did not comply. Sgt. Luciano then placed § 87(2)(b) under arrest § 87(2)(a) 160.50. PO Bruce handcuffed § 87(2)(b). PO Bruce then walked § 87(2)(b) to the back seat of Sgt. Luciano's vehicle. Sgt. Luciano did not recall if any other officer assisted in handcuffing § 87(2)(b). § 87(2)(b) was swinging her arms during and after her handcuffing. § 87(2)(b) was patted down for safety but she was not searched. Sgt. Luciano did not recall the other officers on the scene. § 87(2)(b) was causing public alarm during this incident.

Once at the police vehicle, Sgt. Luciano decided not to arrest § 87(2)(b) and let her go with summonses in lieu of an arrest. § 87(2)(b) was issued three criminal summonses § 87(2)(a) 160.50. PO Perrotti issued the summonses to § 87(2)(b) but he did not curse at § 87(2)(b). Sgt. Luciano raised his voice during this incident to warn § 87(2)(b) but he did not curse and did not hear any officer curse. The force used on § 87(2)(b) consisted of placing her hands behind her back to handcuff her. None of the officers threatened to use force against § 87(2)(b).

### **Officers not interviewed**

§ 87(2)(g), § 87(2)(b)



## **Police Department Documents**

### Sprint (encl. 25a)

The sprint indicates that a disorderly female, § 87(2)(b) was outside of § 87(2)(b) in Brooklyn. Officers from sector 73 of Housing Authority post 149 responded to the location at 4:55 PM. At 5:17 PM, officers issued summonses to § 87(2)(b)

### Stop and Frisk log/ report (encl. 26a-c)

There was no stop and frisk report filed for § 87(2)(b)

### Roll Call

On June 9, 2009, the undersigned requested the roll call from PSA 2 corresponding to the date and time of this incident and had not yet been received upon the filing of this report.

§ 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

§ 87(2)(b)

§ 87(2)(b)

### **Civilian CCRB History (encl. 6a)**

This is the 6<sup>th</sup> CCRB complaint involving § 87(2)(b) § 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

### **Subject Officer CCRB History (encl. 3a, 4a, 5a)**

With a one-year tenure at the NYPD, PO Kearney has no substantiated allegations in his CCRB history. With a two-year tenure at the NYPD, PO Bruce has no substantiated allegations in her CCRB history. With a six-year tenure at the NYPD, Sgt. Luciano has no substantiated allegations in his CCRB history.

### **Disposition of Summonses**

The Brooklyn Criminal Court stated that an arrest warrant was issued for § 87(2)(b) on § 87(2)(b), for failure to appear in criminal court in regard to the summonses issued to her during the aforementioned incident.

## **Conclusions and Recommendations**

### **Subject Officer Identification**

§ 87(2)(b) alleged that one of the first two arriving officers, who were white males, used obscene language when speaking to her in the elevator. The investigation determined that this officer was PO Kearney given that he interacted with § 87(2)(b) in the elevator while PO Perrotti spoke to § 87(2)(b) outside of the lobby. § 87(2)(g) § 87(2)(b) also alleged that PO Bruce, whom she described as a short black female, told her they could go “toe to toe.” PO Bruce was the only black female on the scene. § 87(2)(g) § 87(2)(b). According to § 87(2)(b) an officer described as a bald Caucasian or Hispanic male who arrived later at the scene in a marked vehicle used obscene language towards her. It was determined that this officer was Sgt. Luciano given that he matched the description of a bald Hispanic male and based on

the sergeant's testimony that he interacted with § 87(2)(b) upon his arrival. In addition, § 87(2)(b) did not make allegations against the driver of the vehicle, PO Andreas, who is not bald. § 87(2)(g)

### Undisputed Facts

It is undisputed that § 87(2)(b) was having an altercation with § 87(2)(b) in the lobby of § 87(2)(b). Undisputed is that § 87(2)(b) acted belligerent as PO Kearney and PO Perrotti attempted to question her and obtain her identification. Undisputed is that § 87(2)(b) refused to comply with the officers' orders, used obscene language towards them, threatened and pushed them. It is undisputed that § 87(2)(b) was resisting.

### Allegations not pleaded

§ 87(2)(b) alleged that PO Perrotti and PO Kearney pulled her out of the elevator by her coat collar, pulled her arms behind her back and handcuffed her. § 87(2)(b), § 87(2)(g). § 87(2)(b) refused to exit the elevator voluntarily upon PO Perrotti's and PO Kearney's request. Patrol Guide procedure 203-11 states that officers can use "that amount of force necessary to overcome resistance to effect an arrest" (encl. 2a-b). § 87(2)(g)

Additionally, § 87(2)(b) alleged that PO Bruce searched her pockets. § 87(2)(b), § 87(2)(g)

### Disputed Facts

§ 87(2)(g), § 87(2)(b)

### Assessment of Evidence

It is undisputed that § 87(2)(b) and § 87(2)(b) were fighting outside of § 87(2)(b) at the time PO Perrotti and PO Kearney were conducting an exterior patrol of the building. Both officers observed § 87(2)(b) strike § 87(2)(b) in the face and chest. § 87(2)(b), § 87(2)(g)

§ 87(2)(b), § 87(2)(g)

§ 87(2)(b) attempted to leave in the elevator. § 87(2)(b) alleges that PO Kearney asked her to "step-off the mother-fucking elevator."

§ 87(2)(b), § 87(2)(g)

In OATH's Police Department v. Dukes and Conway, a judge found that an officers' use of obscene language did not constitute misconduct because it was used in the context of an arrest and in attempts to ensure submission to handcuffs (encl. 1a-c). § 87(2)(b), § 87(2)(g)

§ 87(2)(b), § 87(2)(g)

§ 87(2)(b) alleged that Sgt. Luciano told her “Just shut the fuck up because you are getting a mother fucking ticket.” Sgt. Luciano denied using discourtesy against § 87(2)(b). All of the officers interviewed denied that any discourtesy was used against § 87(2)(b), § 87(2)(g).

**Allegation A: PO Daniel Kearney spoke obscenely and/or rudely to § 87(2)(b)**

§ 87(2)(g), § 87(2)(b)

**Allegation B: PO Tiffany Bruce threatened § 87(2)(b) with the use of force.**

**Allegation C: Sgt. Jason Luciano spoke obscenely and/or rudely to § 87(2)(b)**

§ 87(2)(g), § 87(2)(b)

Investigator:

Date:

Supervisor:

Date:

Reviewed by:

Date:

Reviewed by:

Date: